

FIRST ENDORSEMENT

Chief Prosecutor, APU, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul Gamble, Department Advocate's Office, January 8, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-27097 against Police Officer John Espinal, Tax Registry No. 962383. The case was conferenced on December 19, 2023, before Assistant Deputy Commissioner of Trials Anne E. Stone, who approved the dismissal of the charges in return for the recommended negotiated penalty of a Command Discipline Schedule (B) and the forfeiture of SIX (6) vacation days.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor, APU
New York City Civilian Complaint Review Board

DISAPPROVED

MAR 29 2024
Edward A. Caban
EDWARD A. CABAN
POLICE COMMISSIONER



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-27097
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, ESPINAL	FIRST JOHN	M.I. C	COMMAND HOUSING PSA 2 ==>SATHOPS-B/N
SHIELD NO. 19909	TAX REGISTRY NO. 962383	SOCIAL SECURITY NO.	DATE APPOINTED 10/11/2016	

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer John Espinal, on or about April 23, 2021, at approximately 2240, while assigned to PSA 2 and on duty, in the vicinity of Mother Gaston Boulevard, Kings County, abused his authority as a member of the New York City Police Department, in that he threatened to arrest § 87(2)(b) without sufficient legal authority.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 6.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer John Espinal, on or about April 23, 2021, at approximately 2240, while assigned to PSA 2 and on duty, in the vicinity of Mother Gaston Boulevard, Kings County, abused his authority as a member of the New York City Police Department, in that he searched the vehicle in which § 87(2)(b) § 87(2)(b) and § 87(2)(b) were occupants without sufficient legal authority.	DISMISSED	

DC Broskie
FIRST DEPUTY COMMISSIONER

2/5/24
DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Caban
POLICE COMMISSIONER

3/29/24
DATE



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

March 25, 2024

Re: CCRB Case No. 202104899 (Incident Date: April 23, 2021) involving Police Officer John Espinal, Tax No. 962383 (DADS No. 2022-27097)

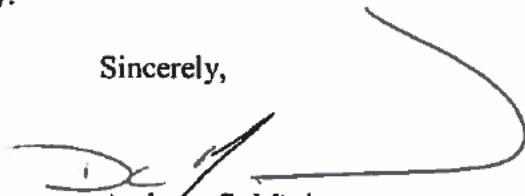
Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer John Espinal and has determined that his actions do not warrant the proposed penalty.

In this case, Officer Espinal conducted a vehicle stop of the complainant for operating a motor vehicle at night with the headlights off. During the stop, the officer determined that the complainant was in possession of an auxiliary police shield despite not being an auxiliary police officer. The officer confiscated the shield from the complainant, informed him that it was Department property, and let him go with a warning. The Police Commissioner finds that Officer Espinal's actions were proper under the circumstances. It was unlawful, under the New York City Administrative Code, for the complainant to be in possession of the auxiliary police shield without permission or authority. Officer Espinal correctly informed the complainant that he could be arrested for that, and was justified in confiscating the shield from the complainant.

Therefore, while the Police Commissioner agrees with the CCRB that the charges and specifications in this matter should be dismissed, the Police Commissioner intends to impose no disciplinary action for the allegations of conducting an improper vehicle search and threatening to arrest an individual without sufficient legal authority.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: John Tynan, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

March 29, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202104899 (Incident Date: April 23, 2021) involving Police Officer John Espinal, Tax No. 962383 (DADS No. 2022-27097)

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated March 25, 2024. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

On December 19, 2023, in front of Assistant Deputy Commissioner Anne Stone, Officer Espinal accepted the findings of substantiation of the allegations contained in the Charges and Specifications and agreed to receive a Command Discipline Schedule (B) and the forfeiture of six (6) vacation days.

Deputy Chief Marino stated that after reviewing the Civilian Complaint Review Board’s (CCRB) recommended penalty, you intend on dismissing the charges and specifications in this matter and imposing no disciplinary penalty on Officer Espinal, as you determined Officer Espinal’s actions to be “proper under circumstances.” Specifically, you determined that the complainant, § 87(2)(b) was unlawfully in possession of an auxiliary police shield and, as such, it was proper for Officer Espinal to both reach into § 87(2)(b) car to retrieve the shield and to threaten to arrest § 87(2)(b).

We disagree with the Police Commissioner’s determination that Officer Espinal’s conduct was proper. Officer Espinal’s Body Worn Camera captured § 87(2)(b) explaining to Officer Espinal that the auxiliary police shield belonged to his father. Officer Espinal possessed no information to suggest that this explanation was incorrect or that § 87(2)(b) did not have permission from his father to be in possession of the shield. There was nothing to suggest that

§ 87(2)(b) was attempting to impersonate a police officer or commit any other crime. As such, Officer Espinal was not justified in reaching into the car to take possession of the shield and in threatening to arrest § 87(2)(b)

The CCRB would ask the Police Commissioner to accept the CCRB's recommendation and penalty that was agreed to by Officer Espinal and impose upon Officer Espinal a Command Discipline Schedule (B) and the forfeiture of six (6) vacation days.

Respectfully submitted,

Matthew Kadushin

Matthew Kadushin
General Counsel
NYC Civilian Complaint Review Board